

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 637

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO GOLD AND SILVER COIN AND SPECIE; AMENDING SECTION 67-9803, IDAHO CODE, AS ENACTED BY SECTION 2, CHAPTER 107, LAWS OF 2025, TO REDESIGNATE THE SECTION AND TO REVISE PROVISIONS REGARDING GOLD AND SILVER COIN AND SPECIE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-9803, Idaho Code, as enacted by Section 2, Chapter 107, Laws of 2025, be, and the same is hereby amended to read as follows:

~~67-9803~~ 67-9903. GOLD AND SILVER COIN AND SPECIE. (1) To the full extent allowed by clause 1, section 10, article I of, and the tenth amendment to, the constitution of the United States, gold and silver coin and specie minted ~~domestically~~ foreign or domestic shall be legal tender in the state of Idaho under the laws of this state. The state may also elect to use gold and silver coin and specie in conducting its business.

(2) Unless expressly provided by statute or by contract, no person or other entity may compel another person or other entity to tender or accept gold or silver coin or specie unless agreed upon by the parties.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.